

		Here, the Bluelink CSA governs the provision of Connected Services, i.e., the wireless/technology services received as part of the enrollment in a Bluelink Connected Services subscription. (Rao Decl. ¶ 6, Feeley Exh. 3.) Plaintiff's claims, however, go far beyond this scope. Plaintiff alleges the Subject Vehicle was defective, was not able to be repaired in a timely manner, and HMA failed to replace the Subject Vehicle or make restitution. (See Complaint, generally.) The Connected Services contemplated in the CSA do not implicate Plaintiff's allegations. Accordingly, Plaintiff's claims do not "have their roots in the relationship" created by the CSA. Based upon the foregoing, the motion to compel arbitration based upon the CSA is DENIED. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 13, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
2	Schein v. B&B Collision & Coachwerks, Inc.	Off calendar.
3	Lopez v. Cross Roads Apartments	Defendant FDK Enterprises LP A Calif Ltd Partnership Magellan Management LLC dba Cross Roads Apartments moves to compel Plaintiff Tina Lopez to respond to the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents. For the following reasons, the motions are GRANTED. Responses to interrogatories and inspection demands are due 30 days after service (plus appropriate time for method of service). (Code Civ. Proc. §§ 2030.260; 2031.260.) If the party to whom a discovery request is directed fails to respond timely, that party waives all objections, including claims of privilege and work product protection. (Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demands).) On September 15, 2025, Defendant served Plaintiff with the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents. (Chang Declarations, ¶¶ 2-5, Ex. A and B.) Plaintiff has not served responses to the discovery requests. (Ibid.) Plaintiff has not filed an Opposition, and there is no evidence that Plaintiff responded to the discovery requests. As a result of Plaintiff's failure to respond to the discovery requests, Defendant is entitled to an order compelling responses without objections. (Code Civ. Proc. §§ 2030.290, 2031.300.)

		Plaintiff is ORDERED to serve responses without objections to the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents within 30 days. Sanctions are available on motions to compel responses to interrogatories and inspection demands. (Code Civ. Proc. § 2030.290(c), § 2031.300(c). ("The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").) Defendant seeks sanctions of \$507 (2 attorney hours at \$186/hour + 1 legal assistant hour at \$75/hour + \$60 filing fee) for each of the three motions, for a total of \$1,521. This request is excessive, as no opposition was filed and much of the time spent was duplicative for the three motions. Plaintiff is ORDERED to pay monetary sanctions of \$321 (1 attorney hour at \$186/hour + 1 legal assistant hour at \$75/hour + \$60 filing fee) for each of the three motions, for a total of \$963. Plaintiff shall pay the sanctions of \$963 by July 16, 2026. Defendant shall give notice of this ruling.
4	9 Whatney, LLC v. Mayrock Automotive, Inc.	Plaintiff/Cross-Defendant 9 Whatney, LLC, and Cross-Defendant Hezy Shaked move to recover attorney's fees. The motion is CONTINUED to July 16, 2026, at 1:30 p.m. in this Department. A party moving to recover attorney's fees has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) The Moving Parties argue they are entitled to fees under the 2022 Lease. (See Mot. at 9:1-18; Larson Decl., Ex. A.) Contractual attorney's fees are recoverable as costs. (Code Civ. Proc., § 1033.5(a)(10)(A).) Civ. Code Section 1717(a) provides that: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. . . . Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit." Any resolution of a contract action to enforce the agreement must be accompanied by an award of reasonable attorney fees to the prevailing party, regardless of the reason for the judgment. (See <i>Real Property Services Corp. v. City of Pasadena</i> (1994) 25 Cal.App.4th 375, 384 n. 7 [holding the prevailing defendant is entitled to recover fees where the nonsignatory plaintiff lacked standing to pursue the contract claim].)